

House File 304

H-1053

1 Amend House File 304 as follows:

2 1. Page 1, before line 1 by inserting:

3 <Section 1. Section 474.1, subsection 2, Code 2025, is
4 amended to read as follows:

5 2. a. Subject to confirmation by the senate, the governor
6 shall appoint a member as the chairperson of the commission.
7 The chairperson shall ~~be the administrator of the utilities~~
8 ~~commission~~ preside over the meetings. The appointment as
9 chairperson shall be for a two-year term ~~which~~ that begins and
10 ends as provided in section 69.19.

11 b. The commission, with approval of a majority of the
12 members, shall appoint ~~a chief operating officer~~ an executive
13 director to manage the administration and operations of the
14 utilities commission. The commission shall set the salary
15 of the ~~chief operating officer~~ executive director within the
16 limits of the pay plan for exempt positions provided for in
17 section 8A.413, subsection 3, unless otherwise provided by
18 the general assembly. The commission may employ additional
19 personnel as it finds necessary. The executive director shall
20 be selected primarily for administrative ability and knowledge
21 in the field, without regard to political affiliation.
22 The executive director shall serve at the pleasure of the
23 commission.

24 Sec. _____. Section 474.2, Code 2025, is amended to read as
25 follows:

26 **474.2 Certain persons barred from office.**

27 A person who is employed by any common carrier or other
28 public utility or who owns any bonds, stock, or property in
29 any public utility shall not be eligible to hold the office of
30 utilities commission member or ~~chief operating officer of the~~
31 ~~utilities commission~~ executive director. A member or ~~chief~~
32 ~~operating officer~~ executive director who enters into employment
33 with any common carrier or other public utility or who acquires
34 any stock or other interest in any common carrier or other
35 public utility after appointment as a member or ~~chief operating~~

1 ~~officer~~ executive director shall be disqualified from holding
2 or performing the duties of the office.

3 Sec. _____. Section 474.8, Code 2025, is amended to read as
4 follows:

5 **474.8 Office — time employed — expenses.**

6 The utilities commission shall have an office at the seat
7 of government. Each member shall devote the member's whole
8 time to the duties of the office, and the members, ~~chief~~
9 ~~operating officer~~ executive director, and other employees shall
10 receive their actual necessary traveling expenses while in
11 the discharge of their official duties away from the general
12 offices.>

13 2. Title page, line 1, by striking <including> and
14 inserting <the organizational structure of the Iowa utilities
15 commission,>

16 3. Title page, line 2, after <telecommunications> and
17 inserting <,>

18 4. By renumbering as necessary.

WILZ of Wapello